

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KARYN BYRD and DAVID SOROKOFF,

INDEX NO.:

Plaintiff(s),

-against-

CITY OF NEW YORK and KELVIN GARCIA,

Defendants.

Plaintiffs,
designate NEW YORK
County as the
place of trial.
The basis of the venue
is DEFENDANTS' place of business.

SUMMONS
Plaintiffs reside at
1 Southgate Avenue
Hastings on Hudson, NY

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of Service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
June 18, 2014


GREENBERG & YOUNG, P.C.

BY: JAMES K. GREENBERG
Attorney(s) for Plaintiff(s)
363 Seventh Avenue, Suite 400
New York, New York 10001
212-545-7337

Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

KELVIN GARCIA
10th Police Precinct
230 West 20 Street, New York, NY 10011

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KARYN BYRD and DAVID SOROKOFF,

Index No.:

Plaintiffs,

-against-

**VERIFIED
COMPLAINT**

CITY OF NEW YORK and KELVIN GARCIA,

Defendants.
-----X

Plaintiffs, by their attorneys, **GREENBERG & YOUNG, P.C.**, complaining of the Defendants, respectfully allege, upon information and belief, as follows:

1. At all times hereinafter mentioned, the plaintiffs were individuals who resided and still reside in the County of Westchester and State of New York, maintaining a residence address of 1 Southgate Avenue, Hastings on Hudson, New York.

2. Defendant City of New York is a Municipal Corporation duly formed and existing under and by virtue of the laws of the State of New York (hereinafter referred to as "defendant CITY").

3. At all times hereinafter mentioned, KELVIN GARCIA (hereinafter referred to as "defendant Garcia") was an individual who was employed by defendant City of New York at its 10th precinct, and whose shield number, upon information and belief, is 2785.

4. Upon information and belief, at all times hereinafter mentioned, Officer Garcia was an individual who was employed by and acting in the course of his employment with defendant City of New York.

5. On or about February 27, 2014, a Notice of Claim was caused to be served upon defendant, CITY, which service was made by Certified Mail return receipt requested.

6. At least 30 days have elapsed since the demands and claims upon which this action is predicated were presented to defendant CITY for adjustment and said defendant has neglected or refused to make adjustment or payment thereon.

7. A 50-h hearing pursuant to the General Municipal Law was scheduled and held by defendant CITY on May 5, 2014.

8. This law suit is being commenced within the statutory period of one year and ninety days from the accrual of said cause of action against defendant CITY.

9. On Sunday, December 8, 2013, at approximately 1:30 p.m., defendant GARCIA was working as and acting within the scope of his employment as a Police Officer.

10. On Sunday, December 8, 2013, at approximately 1:30 p.m., the plaintiff was a bicycle rider involved in a motor vehicle accident in which she was thrown from her bicycle and seriously injured.

11. Upon information and belief, on Sunday, December 8, 2013 at or about 1:30 p.m., defendant Garcia responded to the scene of the plaintiff's accident, spoke with witnesses and performed other investigation and wrote a police accident report.

12. Upon information and belief, defendant Garcia did not record or memorialize in any way the identifying information about the motor vehicle involved in the accident, the driver or owner of that vehicle, or any of the witnesses to the accident in any notes, memoranda, log books or other documents.

13. The plaintiff was severely injured as a result of the accident, having sustained head, jaw and extremity injuries that meet the threshold set forth in the New York State Insurance Law for recovery in automobile accidents.

14. As a result of the underlying accident, plaintiff KARYN BYRD was injured physically, emotionally and psychologically, was and will be required to endure medical and psychological care as a result thereof, sustained permanent impairments of her physical and emotional well-being, and was otherwise injured and damaged.

15. Plaintiff KARYN BYRD actually relied on defendant Garcia for assistance at the scene and expected him to obtain, record and memorialize the information identifying the driver of the car that caused the accident.

FIRST CAUSE OF ACTION FOR VIOLATION OF POLICE PROTOCOL

16. The actions of defendant GARCIA in failing to record or otherwise memorialize the information about the vehicle, driver and witnesses involved in the aforementioned accident was a direct and substantial deviation from police protocols requiring defendant GARCIA to do so.

17. As a result of the defendant GARCIA's failure to record or otherwise memorialize the information about the vehicle, driver and witnesses involved in the aforementioned accident, the plaintiff was prevented from pursuing valid, cognizeable and valuable personal injury claims against the individual who caused her accident and was therefore deprived of a lawful recovery for the damages she sustained.

18. As a result of the foregoing, plaintiff KARYN BYRD was damaged in sum that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR NEGLIGENT INVESTIGATION**

19. The plaintiff repeats, re-alleges and reiterates the allegations set forth in paragraphs 1 through 17 as if set forth fully herein.

20. Defendant GARCIA's aforescribed failures constituted negligent investigation by the CITY, its agents, servants and/or employees, for which defendant CITY is vicariously liable.

21. As a direct result of defendant CITY's negligence, through its agent, servant and/or employee, defendant GARCIA's failure to record or otherwise memorialize the information about the vehicle, driver and witnesses involved in the aforementioned accident, plaintiff KARYN BYRD sustained economic injury in the form of deprivation of the pursuit of her otherwise valid, cognizeable and valuable personal injury claims.

22. As a result of the foregoing, plaintiff KARYN BYRD was damaged in sum that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action.

**AS AND FOR A THIRD CAUSE OF ACTION
IN BEHALF OF DAVID SOROKOFF**

23. Plaintiffs repeat, reiterate and re-allege each and every allegation set forth in paragraphs 1 through 20 hereinabove with the same force and effect as if set forth fully herein.

24. At all times hereinafter mentioned, plaintiff DAVID SOROKOFF was and still is the lawful spouse of KARYN BYRD, and as such, he was and still is entitled to the comfort and enjoyment of her society and services.

25. That by reason of the aforementioned occurrence, plaintiff DAVID SOROKOFF has been deprived of the love, companionship, services, solace, consortium, affection and attention of his wife, plaintiff KARYN BYRD, to which he was and is lawfully entitled.

26. That as a result of the deprivations hereinbefore described, plaintiff DAVID SOROKOFF has been damaged in a sum that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action.

WHEREFORE, Plaintiffs KARYN BYRD and DAVID SOROKOFF respectfully request judgment against the Defendants as follows:

A. On the First Cause of Action, judgment against the defendants, and each of them, in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action;

B. On the Second Cause of Action, judgment against the defendants, and each of them, in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action;

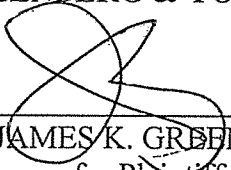
C. On the Third Cause of Action, judgment against the defendants, and each of them, in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action;

altogether with the costs and disbursements of this action and interest on the verdict rendered hereon.

Dated: June 16, 2014
New York, NY

Respectfully submitted,

GREENBERG & YOUNG, P.C.



By: JAMES K. GREENBERG
Attorneys for Plaintiffs
363 Seventh Avenue, Suite 400
New York, New York 10001
(212)545-7337

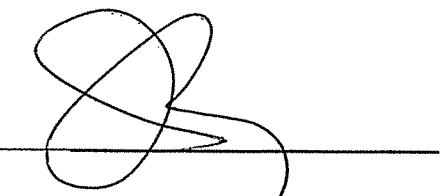
STATE OF NEW YORK)
 ss.:)
COUNTY OF NEW YORK)

I, JAMES K. GREENBERG, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state that I am a member of the firm of *GREENBERG & YOUNG, P.C.*, attorneys for *plaintiffs*..

I have read the foregoing *Complaint* and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by *plaintiffs* is because the *plaintiffs* are not presently within the County wherein I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are as follows:
Information obtained from *plaintiffs* and information contained in *plaintiffs'* file.

I affirm that the foregoing statements are true, under penalty of perjury.

Dated: New York, New York
 June 18, 2014


JAMES K. GREENBERG

KARYN BYRD and DAVID SOROKOFF,

Plaintiffs,

-against-

CITY OF NEW YORK and KELVIN GARCIA,

Defendants.

SUMMONS & VERIFIED COMPLAINT

GREENBERG & YOUNG, P.C.
Attorney(s) for Plaintiff
Office and Post Office Address, Telephone
363 Seventh Avenue, Suite 400
New York, NY 10001
(212)545-7337
(212)545-7406 fax

To :

Signature (Rule 130-1.1-a)

JAMES K. GREENBERG

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated: _____

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
will be presented for settlement to the HON.
within named Court, at

of which the within is a true copy
one of the judges of the

on at M.

Dated,

Yours, etc.